

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIRST SECTION

CASE OF TIKHENKO AND OTHERS v. RUSSIA

(Applications nos. 29316/13 and 14 others –
see appended list)

JUDGMENT

STRASBOURG

20 July 2023

This judgment is final but it may be subject to editorial revision.



In the case of Tikhenko and Others v. Russia,

The European Court of Human Rights (First Section), sitting as a Committee composed of:

Lətif Hüseynov*, President*,
Ivana Jelić,
Erik Wennerström*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 29 June 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers or participants of public assemblies. They also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014 and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. Some applicants submitted other complaints which also raised issues under the Convention and its Protocols, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that these complaints also disclose violations of the Convention and its Protocols in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018, *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, and *Teslenko and Others v. Russia*, nos. 49588/12 and 3 others, §§ 72-74 and 81-82, 5 April 2022, as to administrative escorting to and/or detention in a police station beyond three hours for non-custodial

offences, without substantiating the impossibility to compile an offence report at the rally venue or any exceptional circumstances or another valid ground under the Code of Administrative Offences (CAO) or continued detention after the offence report was compiled; *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016, concerning the absence of a prosecuting party in the proceedings under the CAO; *Korneyeva*, cited above, §§ 62-65 as to the right of the organisers or participants of public assemblies not to be tried and punished twice for the same offence.

V. REMAINING COMPLAINTS

14. Some applicants raised further additional complaints under various Articles of the Convention concerning other aspects of the administrative-offence proceedings. In view of the findings in paragraphs 11 and 13 above, the Court considers that there is no need to deal separately with these remaining complaints.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

15. Regard being had to the documents in its possession and to its case-law (see in particular *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table and dismisses the remainder of the applicants' claims for just satisfaction.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with the applicants' complaints as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, and *finds* that there is no need to examine separately the remaining complaints under the Convention;

4. *Holds* that these complaints disclose a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention and the Protocols thereto as regards the other complaints raised under well-established case-law of the Court (see appended table);

6. *Holds*

(a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points;

7. *Dismisses* the remainder of the applicants' claims for just satisfaction.

Done in English, and notified in writing on 20 July 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Lətif Hüseynov
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	29316/13 02/04/2013	**Galina Fedorovna TIKHENKO** 1947	Vorobyev Viktor Viktorovich Syktyvkar	Independence Day commemoration Volgograd 12/06/2012	Article 20.2 § 5 of CAO	reprimand	Volzhskiy Town Court of the Volgograd Region 05/10/2012		3,500, in non-pecuniary damage, and 250, in costs and expenses to be paid directly to the lawyer, Mr V. Vorobyev
2.	70450/17 07/09/2017	**Aleksandr Nikolayevich NEZNANOV** 1982	Terekhov Konstantin Ilyich Moscow	Anti-corruption protest Tambov 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Tambov Regional Court 15/05/2017	Art. 5 (1) - unlawful detention - escorting to the police station on 26/03/2017 for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000, in non-pecuniary damage, and 250, in costs and expenses to be paid directly to the lawyer, Mr K. Terekhov
3.	79288/17 09/11/2017	**Vladimir Vladimirovich ZHILKIN** 1974	Terekhov Konstantin Ilyich Moscow	Anti-corruption protest Tambov 26/03/2017	Article 20.2 § 2 of CAO	fine of RUB 20,000	Tambov Regional Court 15/05/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500, in non-pecuniary damage, and 250, in costs and expenses to be paid directly to the lawyer, Mr K. Terekhov

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4.	79906/17 07/11/2017	**Aleksandr Sergeyevich MIRONOV** 1979	Zboroshenko Nikolay Sergeyevich Mytishchi	Immortal regiment rally Moscow 09/05/2017	Article 19.3 § 1 of CAO, Article 20.2 § 5 of CAO	detention for 7 days; fine of RUB 20,000	Moscow City Court 08/10/2017 (two decisions of the same day)	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 2.10 p.m. on 09/05/2017 until 9.40 a.m. on 10/05/2017, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - in both sets of administrative-offence proceedings, Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - Art. 19.3 § 1 CAO and Art. 20.2 § 5 CAO; overlap of the facts constituting the basis for the applicant's prosecution and punishment in the second set of proceedings with substantially the same facts underlying his conviction in the first set of proceedings	5,000, in non-pecuniary damage, and 250, in costs and expenses to be paid directly to the lawyer, Mr N. Zhoroshenko
5.	80338/17 10/11/2017	**Vyacheslav Borisovich RYBAKOV** 1966	Glukhov Aleksey Vladimirovich Novocheboksarsk	Anti-corruption rally Cheboksary 26/03/2017	Article 19.3 § 1 of CAO,	fine of RUB 1,000;	Supreme Court of the Republic of Chuvashia	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - in both sets of	3,500

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					Article 20.2 § 5 of CAO	30 days of community work	15/08/2017 (two decisions of the same date)	administrative offence proceedings	
6.	80340/17 10/11/2017	**Yuriy Borisovich SIDOROV** 1987	Glukhov Aleksey Vladimirovich Novocheboksarsk	Anti-corruption rally Cheboksary 26/03/2017	Article 19.3 § 1 of CAO, Article 20.2 § 5 of CAO	fine of RUB 1,000; 32 days of community work	Supreme Court of the Republic of Chuvashia 31/08/2017 (two decisions of the same date)	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - in both sets of administrative-offence proceedings	3,500
7.	80358/17 10/11/2017	**Dmitriy Martin ROBSON** 1997	Glukhov Aleksey Vladimirovich Novocheboksarsk	Anti-corruption rally Cheboksary 26/03/2017	Article 19.3 § 1 of CAO	fine of RUB 500	Supreme Court of the Republic of Chuvashia 11/05/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
8.	80374/17 10/11/2017	**Roman Mikhaylovich ROMANOV** 1998	Glukhov Aleksey Vladimirovich Novocheboksarsk	Anti-corruption rally Cheboksary 26/03/2017	Article 19.3 § 1 of CAO	fine of RUB 500	Supreme Court of the Republic of Chuvashia 12/05/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
9.	80378/17 10/11/2017	**Konstantin Aleksandrovich ISHUTOV** 1983	Glukhov Aleksey Vladimirovich Novocheboksarsk	Anti-corruption rally Cheboksary 26/03/2017	Article 19.3 § 1 of CAO, Article 20.2 § 5 of CAO	fine of RUB 500, fine of RUB 20,000	Supreme Court of the Republic of Chuvashia 21/09/2017 (two decisions of the same date)	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - in both sets of administrative offence proceedings	3,500
10.	2940/18 25/12/2017 AND	**Yevgeniy Aleksandrovich YELFIMOV** 1995	Terekhov Konstantin Ilyich Moscow	Anti-corruption protest Vladivostok	Article 20.2 § 5 of CAO	fine of RUB 10,000	Primorye Regional Court 28/06/2017	Art. 5 (1) - unlawful detention - escorting to the police station on 26/03/2017 for compiling an offence report,	4,000

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	5701/18 17/01/2018			26/03/2017 Anti-corruption protest Vladivostok 12/06/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Primorye Regional Court 09/08/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of administrative-offence proceedings	
11.	4841/18 17/01/2018	**Andrey Alekseyevich YAROTSKOY** 1991	Terekhov Konstantin Ilyich Moscow	Day of the City march Vladivostok 01/07/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Primorye Regional Court 10/08/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500, in non-pecuniary damage, and 250, in costs and expenses to be paid directly to the lawyer, Mr K. Terekhov
12.	5270/18 17/01/2018	**Dmitriy Yevgenyevich RODIN** 1979	Terekhov Konstantin Ilyich Moscow	Rally for maintaining the trolleybus network Moscow 29/01/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 14/07/2017	Art. 5 (1) - unlawful detention - escorting to the police station on 29/01/2017 for compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
13.	5340/18 08/01/2018	**Vladimir Romanovich YAROSLAVSKIY** 1993	Terekhov Konstantin Ilyich Moscow	Anti-corruption protest Vladivostok 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Primorye Regional Court 28/07/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500

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14.	11453/18 15/02/2018	**Roman Yuryevich GURYANOV** 1999	Banik Sergey Stepanovich Vladivostok	Anti-corruption protest Vladivostok 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 5,000	Primorye Regional Court 19/08/2017	Art. 5 (1) - unlawful detention - escorting to the police station on 26/03/2017 for compiling an offence report., Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000, in non-pecuniary damage, and 250, in costs and expenses to be paid directly to the lawyer, Mr S. Banik

[1] Plus any tax that may be chargeable to the applicants.